

104	Fabian vs. Fruth Custom Plastics, Inc. 2024-01408686	Motion for Preliminary Approval of Class/PAGA Settlement The Court has reviewed the supplemental materials provided by Class Counsel and finds that they fail to adequately address the previously identified. Accordingly, Plaintiff Aidee Fabian’s Motion for Preliminary Approval of Class Action and PAGA Settlement is further CONTINUED to July 23 at 2:00 p.m. in Department CX102 in order to give Class Counsel an opportunity to address the issues identified below. This is a putative wage-and-hour class action and PAGA matter. On 6/21/2024, Plaintiff Aidee Fabian, individually and on behalf of all others similarly situated, filed a class action and PAGA complaint against Defendant Fruth Custom Plastics, Inc. (ROA #2.) Defendant answered on 8/14/2024. (ROA #13.) The operative complaint is the first amended complaint, filed on 11/6/2025 pursuant to a stipulated order, alleging various Labor Code wage-and-hour violations and unfair business practices, including a claim for PAGA penalties. (ROA #49.) On 11/13/2025, Plaintiff filed the instant Motion for Preliminary Approval of the Class Action and PAGA Settlement, and submitted the Class Action and PAGA Settlement Agreement and Release (“Settlement Agreement”) and Class Notice for the Court’s review. The motion seeks preliminary approval of the parties’ proposed settlement of Plaintiff’s class and PAGA claims for the non-reversionary gross settlement amount (GSA) of \$575,000. The GSA includes \$30,000 allocated for PAGA penalties. On 3/5/2026, the Court continued the first hearing on the motion and asked Class Counsel to address various issues. Counsel has submitted supplemental materials, including an Amendment to Class Action and PAGA Settlement Agreement and Release (“Amendment”) and an amended Class Notice. The Court has identified the following issues with the supplemental materials submitted by Counsel: 1. In the Court’s 3/5/2026 minute order, the Court stated: The effective date of the Class Members’ and PAGA aggrieved employees’ releases is on the Effective Date (i.e., when the Superior Court’s final approval order and judgment becomes final), but Defendant does not have to fund the GSA until after the Effective Date (i.e., within 30 days of the Effective Date). (Settlement, ¶¶ 13, 52-53, 56.) In contrast, the effective date of Plaintiff’s release is “as of the
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date Defendant fully funds this Settlement.” (*Id.* at ¶ 30.) Counsel must either explain why releasing the Class Members and PAGA aggrieved employees’ claims before settlement funds are fully paid is in the best interests of the Class and aggrieved employees, or amend the settlement agreement to release these claims only after Defendant has paid the settlement funds.

Instead of amending the settlement to provide that Class Members’ and PAGA aggrieved employees’ release is “as of the date Defendant fully funds this Settlement,” the parties’ Amendment modified ¶¶ 30 and 48 governing Plaintiff’s Release to say that it is “as of the Effective Date.” Again, Defendant does not have to fund the GSA until after the Effective Date (i.e., within 30 days of the Effective Date) per ¶ 56 of the Settlement Agreement. Yet counsel does not explain why any release occurring before settlement funds are fully paid is in the best interests of the Class, aggrieved employees, or Plaintiff. Alternatively, the parties may amend the settlement agreement to release all claims only after Defendant has paid the settlement funds

2. In the Court’s 3/5/2026 minute order, the Court stated:

The title of the notice is “Class and PAGA *Award* Notice” (emphasis added). The use of the word “Award” at this stage is misleading, as this is merely a notice that the Court has preliminarily approved the settlement, but no “awards” are being made yet.

The amended Class Notice deletes the phrase “and PAGA Award” from the title instead of just deleting the word “Award.” The title should read “Class and PAGA Notice.”

3. In the Court’s 3/5/2026 minute order, the Court stated:

The notice should include the following warning upfront, in bold: “Your legal rights are affected whether you act or not act. Read this Notice carefully. You will be deemed to have carefully read and understood it.”

The amended Class Notice added these sentences but did not bold them.

4. A further amended proposed order should be submitted that (1) includes the ROA number of counsel’s supplemental declaration to which the Amendment is attached and (2)

		proposes a new realistic Final Approval hearing date in light of the further continuance of this preliminary approval motion. Class Counsel must file supplemental papers addressing the Court's concerns no later than (9) court days prior to the continued hearing date. Counsel must also provide red-lined versions of all revised papers and an explanation of how the pending issues were resolved with precise citation to any corrections or revisions. A supplemental declaration or brief that simply asserts the issues have been resolved is insufficient and will result in a further continuance. Plaintiff is ordered to give notice of this Court's ruling, including to the LWDA, within five (5) court days, and file proof of service.
105	Lemus vs. Tustin Buick GMC, Inc. 2024-01393192	Motion for Approval of PAGA Settlement The Court has reviewed the supplemental materials provided by Plaintiff's Counsel and finds that they adequately address the previously identified issues. Plaintiff Felipe Lemus's Motion for Approval of PAGA Settlement is CONDITIONALLY GRANTED, pending the resolution of one additional issue identified below. This is a PAGA-only action. On 4/12/2024, Plaintiff Felipe Lemus filed a PAGA complaint against Defendant Tustin Buick GMC, Inc., alleging a single cause of action for PAGA civil penalties. (ROA #2.) Defendant answered on 6/3/2024. (ROA #19.) On 9/3/2025, Plaintiff filed the instant Motion for Approval of PAGA Settlement, and submitted for the Court's review the Private Attorney General Act (Labor Code § 2698 <i>et seq.</i>) Settlement Agreement and proposed notice/cover letter to aggrieved employees that will accompany the payment to them. The motion seeks approval of the parties' proposed settlement of Plaintiff's PAGA claims for the non-reversionary gross settlement amount (GSA) of \$245,000. At the first hearing on the Motion on 1/29/2026, the Court concluded that an attorneys' fee award totaling \$73,500 or 30% of the GSA, constituting a 1.44 multiplier of the lodestar amount, is fair, adequate, and reasonable for a settlement of this size, including considering the action's contingent nature and the results achieved. (ROA #65.) The Court also concludes that litigation costs should not include overhead or nonrecoverable items such as postage, and deducted from the requested amount \$18.12 for claimed postage. (<i>Id.</i>) The Court continued the Motion and asked Plaintiff's Counsel to address various issues. (<i>Id.</i>)